



Foreign & Commonwealth Office

PRIVILEGED INSTRUCTIONS

**UNITED KINGDOM OF GREAT BRITAIN
AND NORTHERN IRELAND**



Foreign, Commonwealth & Development Office

Privileged Instructions

Fundamental Principles:

- Respect for human rights and self-determination.
- Full cooperation from traditional allies and new allies in helping restore global order.
- Resolution of disputes through adherence to established international norms, agreements, and conventions.

Desired End State(s):

- Immediate reduction in tensions throughout Jammu and Kashmir.
- Comprehensive peace agreement between India and Pakistan.
- Investigation and resolution of human rights abuses through an international effort.
- Immediate assistance to create conditions amenable to the repatriation of displaced persons.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Secretary.

PRIMARY GUIDANCE: Reducing tensions in South Asia is our primary concern. We must encourage both Pakistan and India to work with each other and with the Jammu & Kashmiri leaders to avoid further violence and stabilize relations between all three parties. We and the United States should play leading roles in the negotiations, either separately or together, by using multilateral meetings to maximize communication. Engagement and cooperation from extra-regional actors, specifically the Americans, will be critical to any lasting agreement produced by the negotiations. In keeping with this, we must also work to encourage, or as needed, compel, increased communication and cooperation between the primary parties involved. We also need to hold a firm line on the issue of terrorism, as we and the United States strongly object to implicit or explicit state support of militant or terrorist organizations. We must make clear to the Jammu & Kashmir delegation, Pakistan, and India that any support or toleration of terrorist activity is unacceptable and a detriment to successful negotiations. The long history of tense relations between Pakistan and India informs their current animosity; we will need to carefully balance negotiations with the two countries to gain concessions while not alienating either nation.

Negotiations with the Jammu & Kashmir delegation will likely revolve around the question of autonomy, and while we and the United States support self-determination and democratic rule, we also support that this should be a bilateral decision between India or Pakistan. For now, we support using the Line of Control (LoC) as the official international border between India and Pakistan for the basis of any future peace agreements, but also support the right of all Kashmiris to unrestricted access to all parts of the former princely state in anticipation of an independent Jammu and Kashmir. Multiple issues will overlap during negotiations, and we should aim to use related issues as leverage to gain concessions for our major concerns.

Chapter Issues and Principal Negotiating Positions

Chapter I: Territory

Discussion:

In 1948, the UN attempted to settle the dispute in Jammu and Kashmir by creating a stalemate position along what came to be known as the Line of Control (LoC). While territorial disputes over Jammu and Kashmir resulted in war in 1947, 1965, and 1999, the status quo of the LoC as a de facto border between India and Pakistan has not changed. In the past India has indicated that it is willing to discuss the LoC as the border. The Jammu & Kashmir leadership is currently active mainly on the Indian side of Kashmir and seeks to expand their influence; however, even within Indian-controlled Jammu and Kashmir their political clout has waned because of the reassertion of Indian control over local governance.

Sino-Indian territorial disputes originate with the 1913 McMahon Line, which established the boundaries of British India. China views the line as illegal, while India adheres to its position. China claimed Aksai Chin and Arunachal Pradesh during the 1962 Sino-Indian War. These two territories are currently split between India and China, with both countries claiming both regions.

Our Position:

We support the LoC as the official international border between India and Pakistan as a starting point, but also support an “invisible border” for all Kashmiri citizens that would fully disappear, if Jammu Kashmir becomes a single state. On further territorial disputes, we remain convinced that the only viable solution is for all parties to restore and respect the original borders of the princely state of Jammu Kashmir, no matter the claims of India, Pakistan and China.

Guidance:

Negotiations over the LoC are tied to issues of Kashmiri governance. Both India and Pakistan are interested in controlling all of historical Jammu and Kashmir. It is assumed that the Jammu & Kashmir leadership will seek full autonomy for all Indian, Pakistani, and Chinese held regions of Kashmir. While we support the other legitimate interests of India and Pakistan, we cannot support the continued subversion and subjugation of Jammu Kashmir. On the sparsely populated India-China frontier stability is less dependent on the governance of peoples, so search for ways to limit tensions between opposing forces first.

Chapter II: Jammu and Kashmir Governance

Discussion:

In 1948 the UN Security Council first called for the creation of a Jammu and Kashmir coalition cabinet and a plebiscite to decide whether the region would accede to India or Pakistan. Though the call for a plebiscite has endured throughout the last eight decades, the recent movement for full autonomy, led by the Jammu & Kashmir leadership, is arguing for the inclusion of an autonomy proposal on the plebiscite ballot. This proposal necessitates a definition of autonomy that can resolve issues of territory, security, and governance, but also addresses and details the various concerns of the various tribes and sects that comprise the princely state. Given the acceptance and implementation of a set of definitions that encompass all local concerns, along with methods and structures to address those concerns appropriately and effectively by trusted local officials and organizations at the local level, then attention may be paid to full autonomy with agreed levels and methods of self-governance.

Our Position:

In principle, we support a revision of the original UN plebiscite proposal to include full autonomy, in alignment with our democratic values. In return for our support for Kashmiri autonomy, we should pressure all parties to prioritize security measures that deter and prevent any further terrorist activity.

Guidance:

The presence of a non-state actor in a multilateral negotiation for this region is unprecedented. We should encourage inclusion of the Jammu & Kashmir delegation by addressing the issue of governance in the early rounds of negotiations. Citing the Jammu and Kashmir Water Resources Act, we can assert a precedent for Kashmiri self-governance. Progress on governance can facilitate positive developments on other matters, such as water rights. Additionally, we should attempt to engage parties in multilateral negotiations by emphasizing that our shared goal of regional stability can only be achieved if all actors engage in the conversation. Linking governance and terrorism concerns may serve to bring Russia to the table. However, if talks on governance do not proceed well with India and Pakistan, we should approach other negotiation issues in order to sustain the dialogue.

Red Line:

No agreements that fail to address the possibility of full autonomy for Jammu and Kashmir.

Chapter III: Human Rights and Displaced Persons

Discussion:

Both sides in the India-Pakistan conflict accuse each other of human rights violations, and hundreds of thousands of people continue to be displaced from their homes, most in camps under dire conditions. The UN has made clear its interest in conducting investigations into specific abuses. IDPs and refugees are another major issue, with populations fleeing the LoC border areas and flooding into India and Pakistan. Thousands of displaced persons are trapped in the city of Leh, although they are now receiving much-needed humanitarian assistance. While the population in Indian Jammu Kashmir has had diminishing stores of food and medical supplies restocked, it remains vulnerable due to the continuing crisis which may only be truly abated by a true settlement of this historic conflict.

Our Position:

Humanitarian concerns are a top priority for us and the United States. An international investigation into human rights abuses is necessary in order to help reduce tensions and bring resolution to some of the questions surrounding Jammu and Kashmir. More immediately, parties must agree on an approach to manage displaced persons relief and repatriation efforts. There are many reasons to resolve this conflict, but this is reason enough to continue to press for a final solution for the peoples of Jammu and Kashmir. This is not the time to argue over semantics such as whether these populations are IDP or refugees – the international community must come to the aid of those suffering in the region.

Guidance:

We should push for an international investigation into the broader human rights violations in Jammu and Kashmir. The UN is the natural vehicle for these investigations, with India refusing to pay

adequate attention to the matter and would likely fight any external intervention into what they maintain as their internal affairs. We and our American colleagues should encourage India to agree to a UN investigation and ask that Pakistan encourage China to do the same.

In the long term the vulnerable IDP populations need assistance in order to leave these shabby camps and return to their homes and stable and secure conditions must be established to allow an orderly repatriation. In the short term, above and beyond providing basic aid in terms of food, water, and shelter, each party must agree on ways to increase physical protection, necessary screening, and humane repatriation policies and procedures for those living in recognized camps and other areas. Whether these populations are considered IDPs or refugees, their humane treatment and protection is in the interest of all countries. Because no country wants the world to see the egregious mistreatment of refugees and IDPs in the region, we should seeking a stable situation that enables immediate repatriation. In particular, we should exert our influence over India to reopen travel routes into the Kashmir Valley and offer protection to IDPs within Indian borders. The ability to empower the Jammu & Kashmiri people in this effort would help legitimize them as the true representatives of all Kashmiris, for which we must be an advocate.

Red Line:

Forcefully oppose any perceived intransigence on the need for an international investigation of human rights violations.